**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

**Item No. 301**
**CA(CAA)/26(AHM)2023**

**Proceedings under Section 230-232 of Co. Act, 2013**

**IN THE MATTER OF:**

S B FIBRES PVT LTD (Transferor Co.) **.....Applicant**
Rainbow Packaging Pvt Ltd (Transferee Co.)

**.....Respondent**

**Order delivered on ..10/05/2023**

**Coram:**

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

**PRESENT:**

For the Applicant : Mr. Ravi Kapoor, PCS
For the Respondent :

**ORDER**

Ld. PCS Mr. Ravi Kapoor appears for the petitioner companies. We seek clarifications on following issues:-

1. As per the CA list of Shareholders of the transferee company annexed at page no. 207, serial no.10, consent available at page 256, 257, 258 but no Board Resolution / Authorization Letter annexed with consent affidavit.
2. As per the CA list of secured creditors of the transferee company annexed at page No.260, consent affidavit available at page 261 to 268, but no Board Resolution / Authorization Letter annexed with consent affidavit.
3. As per the CA list of unsecured creditors (serial no. 5) of the transferee company annexed at page No.270, consent affidavit available at page 297 and 298, but no Board Resolution / Authorization Letter annexed with consent affidavit

Ld. PCS Mr. Ravi Kapoor undertakes to file requisite documents through an affidavit within three days. Since the Bench has been re-constituted, the order is de-reserved.

List for hearing on 16.05.2023.

-Sd- -Sd-

**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

**SHAMMI KHAN**
**MEMBER (JUDICIAL)**